

each creditor or legatee, upon receiving his money, should give as many receipts as there are purchasers, so that each purchaser may have one ; or if the creditors or legatees are but few they may be made parties to the conveyance. Another mode by which the purchaser may be secured is an assignment by all the creditors and legatees of their debts and legacies to a trustee, with a declaration that his receipts shall be sufficient discharges, and then the trustee can be made a party to the several conveyances. Sometimes a bill is filed for carrying the agreement into execution, when the purchase-money is of course directed to be paid into Court ; and this is the surest mode, because the money will not be paid out of Court without the knowledge of the purchaser" (b).

28. **New principle suggested.** — From the preceding discussion the fundamental principle may be collected, that (where no Act of Parliament applies (c)) *a purchaser is in all cases bound to see to the application of his purchase-money, unless a positive intention to the contrary on the part of the settlor be either expressed or implied in the instrument creating the trust.* Such indeed is the conclusion to which the authorities conduct us ; but, independently of precedent, it might be suggested that the better principle would be, that, *primâ facie, a direction to sell should imply in all cases a power of signing discharges ; but that where it was practicable, and no impediment to the execution of the trust was thereby created, the purchaser should pay his money directly to the party beneficially entitled.* The distinction between the two principles is very material. According to the former rule, if a trust be created for payment of debts and legacies, and the debts be paid, and then the trustees sell, though the purchaser has notice of all debts having been discharged, he is nevertheless not bound to see to the application of his purchase-money, because there was an implied intention by the settlor that the receipts of trustees should be sufficient acquittances (d) ; but, by the operation * of the latter rule, the purchaser [*476]

(b) Vend. & Purch. 848, 11th edit. 23 & 24 Vict. c. 145, s. 29 ; [44 & 45

(c) See 22 & 23 Vict. c. 35, s. 23 ; Vict. c. 41, s. 36,] referred to ante.

(d) See *supra*, pp. 458 et seq.